

AIR/Rally

User Agreement & Privacy Policy

DRAFT — PENDING REVIEW BY QUALIFIED COUNSEL

Prepared: 17 August 2026

User Agreement version: 2026-08-17

Platform: air-rally.com — pickleball court marketplace, Philippines

What this is. These documents were drafted to describe what the AIR/Rally platform actually does today. Every clause was written against the live database schema, the booking policy constants and the payment integration, rather than adapted from a template.

What it is not. No lawyer has reviewed this text. It should not be treated as compliant, complete or binding until it has been.

How to read it. Highlighted boxes marked *For review* flag points that need a legal decision — typically where the product's current behaviour may not meet Philippine consumer or data-protection requirements. They appear beside the relevant clause, and are collected in a single table at the end. These boxes are not shown to users on the website.

Material facts the reviewer should know. Payments are collected into AIR/Rally's own PayMongo account; no automated settlement to venues exists yet and no funds have been paid out through the platform. Cancellation compensation is issued as platform credit rather than cash. Uploaded images are stored in publicly readable buckets. The database and server functions are hosted in South Korea. Self-service data export and account deletion have not been built.

User Agreement

Version 2026-08-17 · Last updated 17 August 2026

AIR/Rally is an online marketplace for discovering and booking pickleball courts in the Philippines. These terms govern your use of air-rally.com and any AIR/Rally application.

By creating an account, you accept this agreement. If you do not accept it, do not create an account or make a booking.

1. What AIR/Rally is, and what it is not

AIR/Rally connects players with venues that operate pickleball courts. Venues are independent businesses. They own and control their courts, set their own prices and opening hours, and are responsible for the condition, safety, staffing and lawful operation of their facilities.

When you book, your agreement to use the court is with the venue. AIR/Rally is not the operator of the court, not a party to that agreement, and does not supervise play. AIR/Rally's role is to list availability, take the booking, collect payment, and give both sides a record of it.

FOR REVIEW

Confirm this characterisation holds under Philippine law given AIR/Rally collects payment into its own PayMongo account before any venue settlement exists. A regulator may view collecting funds as more than pure intermediation.

2. Your account

You must be able to enter a binding contract to hold an account. You are responsible for what happens under your account and for keeping your password private.

You give a first name, last name and email address at signup. You may add a display name, a profile photo and a phone number. Your display name and profile photo are visible to other users.

Accounts begin as player accounts. Becoming a venue owner requires submitting an application and being approved by AIR/Rally; you cannot grant yourself venue-owner or administrator access.

3. Booking a court

A booking is held from the moment it is created and becomes confirmed once payment succeeds. A court cannot be double-booked: the first booking to take a time slot holds it, including while payment is still pending.

Bookings must start at least 30 minutes in the future and may run up to 4 hours. Availability shown reflects the venue's stated opening hours and any periods the venue has blocked.

You will receive a confirmation code once your booking is confirmed. Bring it, or be prepared to identify yourself, when you arrive.

4. Prices, payment and fees

Prices are set by the venue and shown in Philippine Pesos before you pay. The price shown at checkout is the price you pay.

AIR/Rally charges venues a platform fee of 5% of the booking value. This fee is taken from the venue's share and is not added on top of the price you see.

Payments are processed by PayMongo, a licensed Philippine payment provider. AIR/Rally never receives or stores your card number, bank credentials or e-wallet credentials. AIR/Rally records only the payment reference identifiers PayMongo returns, so a booking can be matched to its payment.

A booking is only treated as paid when PayMongo confirms the payment to AIR/Rally directly. A payment page that appears to succeed is not itself proof of payment.

FOR REVIEW

Funds are currently collected into AIR/Rally's own PayMongo account. Automated venue settlement is NOT live: no money has moved to any venue through the platform. Counsel should advise whether holding venue funds requires specific disclosure, trust/escrow arrangements, or BSP considerations, and whether the venue contract needs to state the settlement timetable.

5. Cancellations

If you cancel at least 48 hours before your booking starts, you are eligible for compensation in AIR/Rally Credits. If you cancel inside that window, you are not.

If the venue cancels, if the court becomes unavailable, or if a system or payment error is at fault, you are compensated in full regardless of how close to the start time it happens, because none of that is your doing.

Compensation is issued as AIR/Rally Credits rather than a return of funds to your original payment method.

FOR REVIEW

This is the clause most likely to need change. Compensating in Credits rather than cash may not satisfy the Consumer Act of the Philippines (RA 7394) or DTI rules where the failure is the venue's or the platform's. Counsel should confirm whether a cash refund must be offered, at minimum where the customer is not at fault, and whether the 48-hour cutoff is enforceable.

6. Rescheduling

A confirmed booking may be rescheduled while its start time is more than 24 hours away, subject to the new slot being available.

If the new slot costs more, you pay the difference before the reschedule completes. A reschedule is only final once any additional payment succeeds.

7. AIR/Rally Credits

Credits are a balance held in your AIR/Rally account that can be applied against future bookings on the platform.

Credits are not money, not legal tender, and not redeemable for cash. They cannot be transferred to another person or sold. They are issued at AIR/Rally's discretion, principally as compensation under the cancellation terms above.

Credits applied to a booking reduce the amount you pay at checkout. Where a booking paid partly with Credits is later cancelled, the Credits portion is returned to your Credits balance.

FOR REVIEW

Counsel should confirm whether a stored balance of this kind attracts stored-value, e-money or gift-cheque regulation in the Philippines, and whether an expiry period is permitted or required. Credits currently do not expire.

8. Venue owners

Venue owners must be approved before listing. Listings are reviewed before they become visible to players, and AIR/Rally may suspend a listing.

By listing, you confirm you are entitled to offer the courts for hire, that your descriptions, photographs, prices and opening hours are accurate, and that you will honour bookings made through the platform.

You are responsible for the safety and lawful operation of your facility, including any permits, insurance and staffing that requires.

Amounts owed to you for confirmed bookings are recorded against your venue as they are earned. AIR/Rally will notify you of the settlement process and timetable separately; automated payouts are not yet operating.

FOR REVIEW

Venue owners currently accept only these consumer-facing terms. Counsel should advise whether a separate venue/merchant agreement is required covering settlement timing, commission, liability allocation, insurance requirements, indemnity and termination.

9. Open Play and shared costs

A player may book a court and invite others to join. The organiser is the person who books and pays for the court, and is the only person AIR/Rally charges.

Splitting that cost between players is entirely a matter between those players. AIR/Rally does not collect, hold, transfer or guarantee any share, and takes no part in disputes about who owes whom.

10. Community content

COURT/Side posts, comments, club pages, event listings, reviews and uploaded photographs are created by users, not by AIR/Rally.

You keep ownership of what you post. You grant AIR/Rally a non-exclusive, royalty-free licence to store, display and distribute it within the platform for the purpose of operating the service.

Post only what you have the right to post. Do not post anything unlawful, harassing, hateful, sexually explicit, violent, deceptive, or that impersonates another person. Do not post other people's personal information.

Reviews may only be written for bookings you actually made and completed.

Content you upload as an image is stored in publicly readable storage. Anyone holding the direct link can view it, whether or not they have an AIR/Rally account. Do not upload anything you would not want to be publicly accessible.

FOR REVIEW

The public-storage disclosure in the final paragraph is factually accurate and deliberately blunt. Counsel may wish to strengthen it, or the product may prefer to make the buckets private and serve signed URLs instead.

11. Reports and moderation

You can report a post, comment, club, event or player. Reports are private: the person reported is not told who reported them.

AIR/Rally may remove content, suspend accounts or refuse service where these terms are broken. A moderation record is kept even after the content it concerns is deleted.

To keep the platform usable, limits apply to how frequently content can be created — posts and comments per hour, clubs and reports per day.

12. Suspension and closing your account

You may stop using AIR/Rally at any time.

AIR/Rally may suspend or close an account that breaches these terms, that is used unlawfully, or where necessary to protect other users or the platform.

Closing an account does not cancel confirmed bookings or extinguish amounts already owed either way.

FOR REVIEW

Self-service account deletion is not yet built. Counsel should advise on the required response time for an erasure request under the Data Privacy Act and what must be retained despite one (booking and payment records in particular).

13. Disclaimers

AIR/Rally provides the platform as it is. Availability, descriptions and photographs come from venues, and AIR/Rally does not warrant that they are complete or accurate.

AIR/Rally does not inspect courts, does not supervise play, and is not responsible for injury, loss or damage arising from your use of a venue's facilities. Sport carries risk; you play at your own risk.

AIR/Rally does not guarantee uninterrupted or error-free operation of the platform.

14. Limitation of liability

To the fullest extent Philippine law allows, AIR/Rally is not liable for indirect or consequential loss, or for loss of profit, arising from your use of the platform.

Nothing in these terms limits liability that cannot lawfully be limited, including for death or personal injury caused by negligence, or for fraud.

FOR REVIEW

The monetary cap is deliberately left blank pending advice. Counsel should propose an enforceable cap (commonly the value of the booking concerned, or fees paid over a preceding period) and confirm it survives RA 7394.

15. Changes to these terms

These terms may change as the platform develops. The version you accepted is recorded against your account at signup.

Material changes will be notified in the platform. Continuing to use AIR/Rally after a change takes effect means you accept the updated terms.

16. Governing law

These terms are governed by the laws of the Republic of the Philippines, and the courts of the Philippines have jurisdiction over any dispute.

FOR REVIEW

Confirm the appropriate venue clause and whether arbitration or mediation should be required first.

17. Contact

Questions about these terms can be raised through the support page in your AIR/Rally account. Replies are delivered as in-app notifications.

FOR REVIEW

A published business name, registered address and contact email will be required before launch. In-app-only contact is unlikely to satisfy consumer or data-protection expectations.

Privacy Policy

Last updated 17 August 2026

This policy explains what personal information AIR/Rally collects when you use air-rally.com, why, who can see it, and what rights you have over it.

It is written to reflect how the platform actually works today.

1. Who is responsible for your information

AIR/Rally operates the platform and decides how your personal information is handled. It is the personal information controller for the purposes of the Data Privacy Act of 2012 (RA 10173).

FOR REVIEW

The registered entity name and address must be inserted here. Counsel should also advise whether registration with the National Privacy Commission and appointment of a Data Protection Officer are required at current scale.

2. What we collect

Account information: your first name, last name, email address, and — if you provide them — a display name, profile photograph and phone number. We also generate a referral code for your account.

Booking information: the courts and times you book, the price, the status of the booking, your confirmation code, and any cancellation or rescheduling.

Payment information: the reference identifiers PayMongo returns for a payment, the amount, and whether it succeeded. We do not receive or store your card number, bank credentials or e-wallet credentials.

Content you create: reviews, COURT/Side posts and comments, clubs and events you create or join, photographs you upload, who you follow, and posts you like or reshare.

Support and safety information: support messages you send, and reports you file about other users or content.

Technical information: standard server and security logs generated when your browser contacts the service.

3. Why we use it

To create and secure your account, to take and confirm bookings, to process payment through PayMongo, to show your bookings and history back to you, and to notify you about activity that concerns you.

To let venues fulfil the bookings you make with them.

To operate community features, to moderate reported content, and to enforce the limits and rules in the User Agreement.

To keep records required for accounting, dispute handling and legal compliance.

FOR REVIEW

Counsel should map each purpose to a lawful basis under RA 10173 — contract, legitimate interest or consent — and confirm whether separate consent is needed for anything beyond performing the booking.

4. Who can see your information

Other players see your display name and profile photograph next to your posts, comments, reviews, club memberships and event attendance. They do not see your email address or phone number.

A venue owner sees the display name of anyone who books their courts, together with the booking's time, court, status and value. This is how they know who is arriving.

AIR/Rally administrators can see accounts, bookings, payments, reports and support messages in order to run the platform, resolve disputes and moderate content.

Photographs you upload — profile, post, club and venue images — are stored in publicly readable storage. Anyone with the direct link can open them, including people without an AIR/Rally account and search engines that discover the link.

Reports you file are not shown to the person you reported, and are not attributed to you anywhere they can see.

FOR REVIEW

The public image storage is the most significant privacy exposure in the product. It is disclosed here plainly, but counsel and the product team should decide whether profile and post images ought to be private with signed URLs instead.

5. Service providers and where your information is held

Supabase provides the database, authentication and file storage that hold your information. The database is located in South Korea.

Vercel provides the hosting that serves the site. Server functions run in South Korea.

PayMongo processes payments. When you pay, you interact with PayMongo directly and provide payment credentials to them, not to AIR/Rally.

Because these providers operate outside the Philippines, your personal information is transferred to and stored in another country.

FOR REVIEW

Cross-border transfer to South Korea is a required disclosure under RA 10173 and needs the appropriate contractual safeguards with Supabase and Vercel. Counsel should confirm what documentation is required and whether the transfer must be described more specifically.

6. How long we keep it

Account information is kept while your account exists.

Booking and payment records are kept after a booking finishes, because they are financial and dispute records.

Moderation records are kept even after the content they concern has been deleted. A report deliberately outlives the post it describes, so that a record of what was reported and what was decided is not erased along with the content.

FOR REVIEW

Specific retention periods need to be set — particularly for financial records under BIR rules and for moderation records. None are currently defined in the product.

7. Your rights

Under the Data Privacy Act of 2012 you have rights to be informed about how your information is used, to access it, to correct it, to object to its processing, to have it erased or blocked in certain circumstances, to obtain a copy in a portable form, and to be indemnified for damage caused by misuse.

You can change your name, display name, photograph and phone number yourself in your account settings.

For any other request, contact us through the support page. Self-service data export and account deletion are not yet available; requests are handled manually.

If you believe your rights have been infringed, you may complain to the National Privacy Commission.

FOR REVIEW

Manual handling of access and erasure requests is a compliance risk as user numbers grow. Counsel should confirm the statutory response deadline and advise when self-service tooling becomes necessary.

8. Location

If you allow it, your browser shares your approximate location so that venues can be sorted by distance from you. This is used for that search only and is not stored on our servers. You can refuse, and the rest of the platform still works.

9. Keeping information secure

Access to data is enforced in the database itself rather than only in the application, so that a request can only return the records the requesting account is entitled to see.

Passwords are handled by Supabase authentication and are never visible to AIR/Rally.

No system is perfectly secure. If a breach affects your personal information, we will act in accordance with the notification requirements of the Data Privacy Act.

10. Children

AIR/Rally is not intended for children. Accounts should be created by adults; a minor should use the platform only through a parent or guardian's account and with their supervision.

FOR REVIEW

No age verification exists at signup. Counsel should advise the minimum age to state and whether parental consent must be collected for players under it, given pickleball's appeal to families.

11. Changes to this policy

This policy may change as the platform develops. Material changes will be notified in the platform.

12. Contact

Privacy questions and requests can be raised through the support page in your AIR/Rally account. Replies are delivered as in-app notifications.

FOR REVIEW

A dedicated privacy contact address, and the Data Protection Officer's details if one is appointed, must be published here before launch.

Open questions for counsel

Every point in these documents that needs a lawyer's decision, gathered in one place. Each is repeated in context beside the clause it concerns.

DOCUMENT	CLAUSE	QUESTION
User Agreement	1. What AIR/Rally is, and what it is not	Confirm this characterisation holds under Philippine law given AIR/Rally collects payment into its own PayMongo account before any venue settlement exists. A regulator may view collecting funds as more than pure intermediation.
User Agreement	4. Prices, payment and fees	Funds are currently collected into AIR/Rally's own PayMongo account. Automated venue settlement is NOT live: no money has moved to any venue through the platform. Counsel should advise whether holding venue funds requires specific disclosure, trust/escrow arrangements, or BSP considerations, and whether the venue contract needs to state the settlement timetable.
User Agreement	5. Cancellations	This is the clause most likely to need change. Compensating in Credits rather than cash may not satisfy the Consumer Act of the Philippines (RA 7394) or DTI rules where the failure is the venue's or the platform's. Counsel should confirm whether a cash refund must be offered, at minimum where the customer is not at fault, and whether the 48-hour cutoff is enforceable.
User Agreement	7. AIR/Rally Credits	Counsel should confirm whether a stored balance of this kind attracts stored-value, e-money or gift-cheque regulation in the Philippines, and whether an expiry period is permitted or required. Credits currently do not expire.
User Agreement	8. Venue owners	Venue owners currently accept only these consumer-facing terms. Counsel should advise whether a separate venue/merchant agreement is required covering settlement timing, commission, liability allocation, insurance requirements, indemnity and termination.
User Agreement	10. Community content	The public-storage disclosure in the final paragraph is factually accurate and deliberately blunt. Counsel may wish to strengthen it, or the product may prefer to make the buckets private and serve signed URLs instead.
User Agreement	12. Suspension and closing your account	Self-service account deletion is not yet built. Counsel should advise on the required response time for an erasure request under the Data Privacy Act and what must be retained despite one (booking and payment records in particular).
User Agreement	14. Limitation of liability	The monetary cap is deliberately left blank pending advice. Counsel should propose an enforceable cap (commonly the value of the booking concerned, or fees paid over a preceding period) and confirm it survives RA 7394.

DOCUMENT	CLAUSE	QUESTION
User Agreement	16. Governing law	Confirm the appropriate venue clause and whether arbitration or mediation should be required first.
User Agreement	17. Contact	A published business name, registered address and contact email will be required before launch. In-app-only contact is unlikely to satisfy consumer or data-protection expectations.
Privacy Policy	1. Who is responsible for your information	The registered entity name and address must be inserted here. Counsel should also advise whether registration with the National Privacy Commission and appointment of a Data Protection Officer are required at current scale.
Privacy Policy	3. Why we use it	Counsel should map each purpose to a lawful basis under RA 10173 — contract, legitimate interest or consent — and confirm whether separate consent is needed for anything beyond performing the booking.
Privacy Policy	4. Who can see your information	The public image storage is the most significant privacy exposure in the product. It is disclosed here plainly, but counsel and the product team should decide whether profile and post images ought to be private with signed URLs instead.
Privacy Policy	5. Service providers and where your information is held	Cross-border transfer to South Korea is a required disclosure under RA 10173 and needs the appropriate contractual safeguards with Supabase and Vercel. Counsel should confirm what documentation is required and whether the transfer must be described more specifically.
Privacy Policy	6. How long we keep it	Specific retention periods need to be set — particularly for financial records under BIR rules and for moderation records. None are currently defined in the product.
Privacy Policy	7. Your rights	Manual handling of access and erasure requests is a compliance risk as user numbers grow. Counsel should confirm the statutory response deadline and advise when self-service tooling becomes necessary.
Privacy Policy	10. Children	No age verification exists at signup. Counsel should advise the minimum age to state and whether parental consent must be collected for players under it, given pickleball's appeal to families.
Privacy Policy	12. Contact	A dedicated privacy contact address, and the Data Protection Officer's details if one is appointed, must be published here before launch.